

Operating Fund Act, 1986

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Operation Fund Act, 2043 (1986)

Royal Seal and Date of Publication

2043.7.24

Amending Acts

1. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 (2009) 2066.1.7

Act No. 13 of the year 2043 (1986)

An Act Made to Provide for the Operation Fund

Preamble: Whereas, it is expedient to make provision relating to an Operation Fund to simplify and facilitate financial administration, accelerate the pace of development, and provide financial facilities to the general public;

Now, therefore, His Majesty King Birendra Bir Bikram Shah Dev, with the advice and consent of the National Panchayat, has enacted this Act. 1. Short Title and Commencement: (1) This Act may be called the "Operation Fund Act, 2043 (1986)."

(2) This Act shall commence immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,?

(a) "Fund" means the Operation Fund established pursuant to Section 3.

(b) "Ministry" means a ministry of the Government of Nepal, and includes the Cabinet Secretariat.

(c) "Bank" means Nepal Rastra Bank, and includes other banks conducting government transactions.

(d) "Previous fiscal year" means the fiscal year immediately preceding the current fiscal year. 3. Establishment of Fund: (1) A Ministry may, if it considers necessary, establish a special Operation Fund for the purpose of carrying out special operations for a body that generates income by selling its products or services.

(2) The following amounts shall be deposited in the Fund established pursuant to Sub-section (1):

(a) Amount allocated by the Appropriation Act in each fiscal year,

(b) Amount allocated as specified from the revenues deposited into the Consolidated Fund in each fiscal year, as determined by the Government of Nepal. 4. Procedure for Establishing a Fund: To establish a Fund, the concerned Ministry shall, with the consent of the Ministry of Finance, cause a decision to be made by the Government of Nepal, Cabinet. 5. Operation of the Fund: (1) To operate the Fund, an account similar to a government account shall be opened and operated in a Bank.

(2) In bodies that need to purchase raw materials and spare parts, twenty-five percent of the amount allocated under clause (b) of Sub-section (2) of Section 3 shall be set aside for the purchase of raw materials and spare parts. 6. Submission of Accounts of the Fund: The officer designated by the Ministry for the operation of the Fund shall submit the actual accounts of the Fund to the Comptroller General within fifteen days after the end of the fiscal year. 7. Carry Forward of Fund Balance: The balance amount remaining at the end of the previous fiscal year shall be carried forward to the Fund at the beginning of each fiscal year. 8.